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Supreme Court of British Columbia â New Westminster No. NW-250981

SYNTHETIC TEST FIXTURE - all parties, counsel, addresses and figures are fictional. Not for filing.

FORM 32 (RULE 8-1 (4))

No. NW-250981
New Westminster Registry

IN THE SUPREME COURT OF BRITISH COLUMBIA

BETWEEN:
APEX STRUCTURES CORP.
PLAINTIFF / APPLICANT
AND:
CASCADE GENERAL CONTRACTING LTD.
DEFENDANT / RESPONDENT
AND:
PRO-TECH ROOFING SYSTEMS INC.
PROPOSED ADDED DEFENDANT / RESPONDENT

NOTICE OF APPLICATION

Name of applicant: Apex Structures Corp. (the "Plaintiff")

To: Cascade General Contracting Ltd. (the "Defendant"), c/o its counsel, Lindqvist Hartwell LLP,
Suite 1500 - 1055 West Georgia Street, Vancouver, BC V6E 3P3; and
Pro-Tech Roofing Systems Inc. (the "Proposed Added Defendant"), c/o its counsel, Okafor & Wynn,
Suite 400 - 2 Lonsdale Avenue, North Vancouver, BC V7M 2G3

TAKE NOTICE that an application will be made by the Plaintiff to the

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presiding Associate Judge in
Chambers, by video conference pursuant to Practice Direction 73 (Virtual
Chambers), on November 26,
2026, at 9:30 AM, or as soon thereafter as the application may be heard,
for the orders set out in
Part 1 below.

PART 1: ORDERS SOUGHT

1. An order granting the Plaintiff leave to amend the Notice of Civil Claim
filed in this action on
  March 4, 2026, in the form attached as Exhibit "A" to the Affidavit #1
of Marcus Tremblay sworn
  November 2, 2026 (the "Proposed Amended Claim").

2. An order adding Pro-Tech Roofing Systems Inc. ("Pro-Tech") as a
defendant to this action, and
  directing that the style of cause be amended accordingly.

3. An order that the Plaintiff serve the Amended Notice of Civil Claim on
Pro-Tech within seven (7) days
  of the date of this Order, and that Pro-Tech file a Response to Civil
Claim within the time
  prescribed by Supreme Court Civil Rule 3-3.

4. An order that the Defendant and Pro-Tech file any amended Response to
Civil Claim within thirty (30)
  days of service of the Amended Notice of Civil Claim.

5. Costs of this application be costs in the cause.

PART 2: FACTUAL BASIS

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1. The Plaintiff and the Defendant entered into a written construction contract dated June 3, 2024 (the "Prime Contract") for the design and construction of a four-storey commercial building at 4418 Kingsway, Burnaby, BC (the "Project").

2. The Defendant subcontracted the design, supply and installation of the building’s roofing membrane, flashing and rooftop drainage system to Pro-Tech under a subcontract dated August 19, 2024 (the "Roofing Subcontract").

3. Substantial performance of the Project was certified on March 28, 2025. Since that date, the Plaintiff has documented recurring water ingress through the roof assembly at the north and east elevations, causing damage to insulation, drywall, and two tenant fit-outs.

4. On July 9, 2025, the Plaintiff gave written notice to the Defendant of the water ingress and demanded remediation under the Prime Contract warranty. The Defendant directed the Plaintiff to Pro-Tech, which is the party that installed the roof assembly.

5. An independent engineering inspection of the roof assembly was completed on September 22, 2026, by Coastal Building Science Ltd., which identified inadequate membrane lap detailing and undersized roof drains as the probable cause of the water ingress. That report is Exhibit "B" to the Tremblay

Affidavit.

6. The Proposed Amended Claim pleads, against Pro-Tech, negligent design and installation of the roof assembly and breach of the duty of care owed to the Plaintiff as a foreseeable owner of the Project, and, against the Defendant, the additional allegations of breach of the Prime Contract warranty and negligent supervision of the roofing work.

7. The Plaintiff only learned of the inspection findings and the identity of the installing party's design responsibilities on or about September 22, 2026. The Plaintiff's pleading of those matters has not previously been possible on the existing record.

8. The amendments are sought at an early stage of the action. Examinations for discovery have not yet been scheduled, no trial date has been set, and the proposed amendments do not change the nature of the claim against the Defendant. Any prejudice to the Defendant or Pro-Tech can be addressed through costs or a short adjournment.

PART 3: LEGAL BASIS

1. Supreme Court Civil Rule 6-1(1): a party may amend a pleading with leave of the court, or with the consent of all parties, at any stage of the proceeding.

2. Supreme Court Civil Rule 6-2: the court may add a party where the new party's presence is necessary

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to enable the court to adjudicate effectively and completely on the questions involved in the proceeding, and where the claim against that party arises out of the same transaction or series of transactions as the existing claim.

3. Supreme Court Civil Rule 1-3: the just, speedy and inexpensive determination of the proceeding on its merits.

4. Limitation Act, S.B.C. 2012, c. 13, including the discoverability provisions of section 8 and the ultimate limitation period in section 21. The Plaintiff relies on the discovery of the material facts on or about September 22, 2026.

5. Practice Direction 73 (Virtual Chambers).

6. Chaston Construction Corp. v. Henderson Land, 2002 BCCA 357 (liberal amendment principles). See the authority tab in the Application Record. The citation and holding are unverified in this synthetic fixture and must be checked against the official report before any reliance.

PART 4: MATERIAL TO BE RELIED ON

1. Affidavit #1 of Marcus Tremblay, sworn November 2, 2026, and the exhibits attached thereto.
2. The pleadings and proceedings filed herein, including the Notice of Civil Claim filed March 4, 2026, and the Response to Civil Claim of the Defendant filed April 6, 2026.

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3. Such further and other materials as counsel may advise and the Court may permit.

The applicant estimates that the application will take thirty (30) minutes.

Dated: November 2, 2026

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Priya Anand,

Counsel for the Plaintiff (Applicant)